DOCUMENT 1 OF 3

CLOUD SERVICES
MASTER SERVICES AGREEMENT

Infrastructure (IaaS), Platform (PaaS) and Software (SaaS) services - EU / GDPR-aligned model terms

between

[PROVIDER LEGAL NAME], [registered office / company number]
(the Provider)

and

[CUSTOMER LEGAL NAME], [registered office / company number]
(the Customer)

Agreement reference: [REF] | Effective Date: [DATE] | Version: [1.0]

Companion documents: Service Level Agreement (Document 2) and Data Processing Agreement (Document 3). This model is a drafting aid reflecting EU practice (GDPR, Regulation (EU) 2023/2854 'Data Act', and, where relevant, DORA and NIS2). It is not legal advice and must be adapted to the parties, the governing law and the services actually supplied. Square brackets mark items to be completed or selected.

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Part A. Guide to the Contract Set

A.1 Three service models, three risk profiles

Cloud services are bought at three levels. A food analogy is useful: IaaS is renting a kitchen (raw servers, storage and networks); PaaS is a kitchen with the equipment ready (a platform on which the customer builds its own applications); SaaS is a ready meal (finished software the customer simply uses). The higher up the stack, the more the provider controls, and therefore the more of the operational and security risk sits with the provider.

	IaaS (rented kitchen)	PaaS (equipped kitchen)	SaaS (ready meal)
Provider runs	Facilities, hardware, virtualisation, core network	Plus operating system, runtime, middleware, database engine	Plus the application itself, updates and most configuration
Customer runs	OS, middleware, applications, data, identity and access, patching	Applications, data, identity and access, application security	Data, user accounts, configuration, acceptable use
Typical GDPR role of provider	Processor (often infrastructure-only; may have no access to content)	Processor	Processor (and controller only for its own account / billing / security-telemetry data)
Key MSA risk points	Shared responsibility, customer misconfiguration, capacity, exit	Platform lock-in, runtime deprecation, portability of code and data	Feature changes, data export, multi-tenant isolation, sub-processors
Typical SLA metric	Compute / network / storage availability and durability	Platform / API availability, deployment success	Application availability, support response, RPO / RTO

A.2 What each of the three documents does

Document	Purpose	Legal anchor
Master Services Agreement (MSA)	Commercial and legal framework: scope, shared responsibility, fees, IP, confidentiality, warranties, liability, term, termination, exit and switching	Contract law; Data Act Chapter VI (switching); sector rules (DORA, NIS2) where applicable
Service Level Agreement (SLA)	How reliable the service must be, how it is measured, what happens on failure (credits, escalation, chronic-failure termination)	Contract law; Directive on unfair terms / B2B fairness rules where relevant; Data Act Art. 13 on unfair terms (data-related)
Data Processing Agreement (DPA)	Processing of personal data by the Provider on the Customer's behalf: instructions, security, sub-processors, breach, assistance, deletion, audits, transfers	GDPR Article 28 (and Articles 29, 30, 32-36, 44-49); Commission SCCs where data leaves the EEA

A.3 Regulatory map used in this template

- **GDPR (Regulation (EU) 2016/679):** Article 28(3) lists the mandatory content of a controller-to-processor contract. A processor that determines purposes and means becomes a controller (Art. 28(10)). Liability to data subjects is governed by Art. 82; fines by Art. 83.
- **Data Act (Regulation (EU) 2023/2854), Chapter VI:** mandatory switching terms for providers of 'data processing services' offering to EU customers (maximum two-month notice to initiate switching, a transitional period of up to 30 days extendable where technically unfeasible, at least 30 days of data retrieval, erasure thereafter, and the phase-out of switching charges, which are prohibited from 12 January 2027). The Commission's November 2025 'Digital Omnibus' proposes changes (including lighter treatment of custom services and SME providers); its status should be checked at signature.
- **DORA (Regulation (EU) 2022/2554)** applies to ICT third-party services supplied to financial entities from 17 January 2025: Schedule 7 gives a rider. **NIS2 (Directive (EU) 2022/2555)** requires supply-chain security measures from essential and important entities; Clause 12 and Schedule 4 support this.
- **International transfers (GDPR Chapter V):** adequacy (including the EU-US Data Privacy Framework, upheld by the General Court in September 2025 and under appeal before the Court of Justice), Standard Contractual Clauses (Implementing Decision (EU) 2021/914), or other safeguards. The DPA provides fallbacks

so that a change in the adequacy position does not require renegotiation.

A.4 Order of precedence at a glance

In a conflict: (1) the DPA prevails on the processing of personal data; (2) then the Order Form (for commercial specifics expressly stated); (3) then the Schedules to this MSA; (4) then the body of this MSA; (5) then the SLA for service levels and credits (which prevails over the MSA on those matters only); (6) Provider's online terms, policies and documentation are not incorporated except where an Order Form expressly lists them. Clause 2.2 states the exact order.

Part B. Cloud Services Master Services Agreement

This Agreement is made on [DATE] (the **Effective Date**) between:

(1) **[PROVIDER LEGAL NAME]**, a company incorporated in [country] with registered number [number] whose registered office is at [address] (the **Provider**); and

(2) **[CUSTOMER LEGAL NAME]**, a company incorporated in [country] with registered number [number] whose registered office is at [address] (the **Customer**).

Background

(A) The Provider supplies cloud computing services, including infrastructure, platform and software services, to business customers.

(B) The Customer wishes to obtain, and the Provider has agreed to supply, such services on the terms of this Agreement, which includes a Service Level Agreement and a Data Processing Agreement forming part of the contract between the Parties.

1. Definitions and Interpretation

1.1 In this Agreement:

"Affiliate" means any entity that directly or indirectly controls, is controlled by or is under common control with a Party, where control means more than 50% of the voting rights or the power to direct management and policies.

"Agreement" means this Master Services Agreement, its Schedules, each Order Form, the SLA and the DPA.

"Applicable Data Protection Law" means the GDPR, national laws implementing or supplementing it, the ePrivacy rules, and any other law on the protection of personal data applicable to a Party's processing under this Agreement.

"Authorised Users" means the individuals authorised by the Customer or its Affiliates to use the Services.

"Customer Data" means all data, content, code, configurations and materials (including Personal Data) that the Customer or its Authorised Users upload, store, create, process or transmit through the Services, and all outputs generated from them, but excluding Service Data.

"Data Act" means Regulation (EU) 2023/2854 on harmonised rules on fair access to and use of data.

"DPA" means the Data Processing Agreement between the Parties in the form of Document 3, as updated under its terms.

"Documentation" means the Provider's then-current technical and user documentation for the Services published at [URL] or supplied to the Customer.

"Exit Plan" means the plan described in Schedule 5, as updated under Clause 22.

"Fees" means the charges payable under an Order Form, as set out in Clause 7.

"GDPR" means Regulation (EU) 2016/679 (General Data Protection Regulation).

"Intellectual Property Rights" means patents, copyrights, database rights, trade marks, design rights, rights in confidential information and know-how, and all similar rights anywhere in the world, registered or not.

"Order Form" means a document in the form of Schedule 1 signed by both Parties describing the Services ordered, the Service Model, Fees, Term and Service Region.

"Personal Data, controller, processor, personal data breach, supervisory authority" have the meanings in the GDPR.

"Security Incident" means any breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, Customer Data in the Provider's possession, custody or control.

"Service Data" means operational, billing, account, performance and security-telemetry data generated by the Provider about the use of the Services, excluding the content of Customer Data.

"Service Model" means IaaS, PaaS or SaaS as stated in the Order Form: **IaaS** means provision of processing, storage, networks and other fundamental computing resources on which the Customer deploys its own software; **PaaS** means provision of a platform and tooling on which the Customer develops, deploys and runs its own applications; **SaaS** means provision of a finished application accessed over a network.

"Service Region" means the geographic region(s) or data-centre locations stated in the Order Form in which Customer Data is stored and processed.

"Services" means the cloud services described in each Order Form and the applicable Service Model Terms in Schedule 2, together with support and related professional services.

"SLA" means the Service Level Agreement between the Parties in the form of Document 2.

"Term" means the Initial Term and each Renewal Term under Clause 21.

1.2 Headings do not affect interpretation. References to legislation include that legislation as amended or re-enacted. 'Including' means 'including without limitation'. A reference to writing includes email. Where a Schedule or Order Form conflicts with this Agreement, Clause 2.2 applies.

2. Structure and Order of Precedence

2.1 The Provider shall supply the Services to the Customer and its Affiliates named in an Order Form. Each Order Form is a separate contract incorporating this Agreement. The Customer may enter Order Forms on behalf of its Affiliates and is responsible for their compliance.

2.2 If there is a conflict, the following order of precedence applies (highest first): (a) the DPA, in relation to the processing of Personal Data; (b) an Order Form, but only for the commercial terms it expressly states and identifies as overriding; (c) the Schedules to this Agreement; (d) the body of this Agreement; (e) the SLA, in relation to service levels, credits and support; and (f) any Provider policy or documentation expressly referred to in an Order Form. No other terms (including click-through, purchase-order or website terms) apply, even if accepted by an Authorised User.

2.3 Variations to this Agreement are effective only if made under Clause 9 (Change Control) or in writing signed by both Parties.

3. The Services

3.1 **Provision.** From the service start date stated in the Order Form, the Provider shall provide the Services to the Customer in accordance with this Agreement, the Documentation and applicable law, using reasonable skill and care and good industry practice.

3.2 **Licence to use.** The Provider grants the Customer and its Affiliates a non-exclusive, non-transferable (except under Clause 26.1), worldwide (subject to the Service Region and Clause 24) right during the Term to access and use the Services, and to permit Authorised Users to do so, for their internal business purposes and in accordance with the Order Form.

3.3 **Service Model Terms.** Schedule 2 sets additional terms for each Service Model (A: IaaS; B: PaaS; C: SaaS). The terms applicable to a Service are those for the Service Model named in the Order Form.

3.4 **Service Region and data location.** The Provider shall store and process Customer Data only in the Service Region. It shall not move Customer Data outside the Service Region (including through remote access from outside the EEA) except on the Customer's documented instruction or as permitted by the DPA.

3.5 **Capacity and availability.** The Provider shall maintain capacity reasonably necessary to meet the volumes stated in the Order Form and shall notify the Customer promptly of any forecast capacity constraint.

3.6 **Professional services.** Implementation, migration, consulting or training services are supplied under a statement of work referencing this Agreement.

4. Shared Responsibility

4.1 Responsibility for security, availability and compliance is allocated between the Parties according to the Service Model and the Shared Responsibility Matrix in Schedule 3. Each Party shall perform its responsibilities under that Schedule.

4.2 The Provider is responsible for the security *of* the Services (including the facilities, infrastructure, platform and, for SaaS, application layers it operates). The Customer is responsible for the security *of its use* of the Services, including access credentials, identity and permission management, configuration of the resources it controls, the content and legality of Customer Data, and the software and systems it deploys on IaaS and PaaS.

4.3 The Provider shall make available the security features, configuration guidance and logs described in the Documentation and Schedule 4 so that the Customer can discharge its responsibilities. The Provider is not liable for loss to the extent caused by the Customer's failure to perform its responsibilities under Schedule 3, provided the Provider has complied with Clause 4.3's first sentence.

> ***Drafting note:*** *Misallocation of responsibility on IaaS is the most common source of disputes: the provider secures the facility and hypervisor; the customer is responsible for guest operating systems, patching and storage-bucket permissions. Make the matrix specific to the services ordered.*

5. Provider Obligations

5.1 The Provider shall: (a) hold and maintain the certifications and attestations listed in Schedule 4 (or equivalent) throughout the Term; (b) ensure its personnel are suitably skilled, vetted to the extent lawful, and bound by written confidentiality duties; (c) comply with laws applicable to its provision of the Services; (d) promptly notify the Customer if it becomes aware that it cannot comply with this Agreement or that a legal requirement applicable to it conflicts with the Customer's instructions; and (e) make available a named service manager and an escalation path.

5.2 The Provider shall not access Customer Data except to provide the Services, as required to prevent or address service or technical problems, at the Customer's request in support matters, or as required by law, in each case in accordance with the DPA.

6. Customer Obligations and Acceptable Use

6.1 The Customer shall: (a) use the Services in accordance with this Agreement and the Documentation; (b) be responsible for its Authorised Users' acts and omissions; (c) keep credentials secure and promptly notify the Provider of suspected compromise; (d) ensure it has all rights and a lawful basis to process Customer Data and to instruct the Provider; and (e) perform the responsibilities allocated to it in Schedule 3.

6.2 The Customer shall not, and shall not permit others to: (a) use the Services in violation of law or third-party rights; (b) upload malicious code or conduct unauthorised vulnerability scanning or penetration testing outside the Provider's testing policy; (c) interfere with the integrity or performance of the Services or other customers' use; (d) resell the Services except as agreed in an Order Form; (e) reverse engineer the Services except to the extent permitted by law that cannot be excluded by contract; or (f) store or process data of a category excluded in the Order Form.

7. Fees and Payment

7.1 The Customer shall pay the Fees in the currency and at the intervals stated in the Order Form. The Provider shall invoice [monthly in arrears for usage-based charges / annually in advance for subscriptions], and invoices are payable within [thirty (30)] days of receipt of a valid invoice.

7.2 Fees exclude VAT and similar taxes, which the Customer shall pay where applicable against a valid tax invoice. Each Party bears its own income taxes. If withholding is legally required, the Customer shall withhold only the minimum required and supply receipts [and gross up Fees].

7.3 The Provider shall not increase Fees during the Initial Term. On renewal, Fees may increase by notice not less than [ninety (90)] days before the Renewal Term, by no more than [the lesser of [x]% and the change in [CPI / HICP]].

7.4 **Disputed invoices.** The Customer may withhold amounts disputed in good faith by written notice within the payment period explaining the reasons, and shall pay the undisputed part. The Parties shall resolve disputed amounts under Clause 25.

7.5 **Late payment.** Undisputed overdue sums bear interest at [x]% above [reference rate], or the statutory rate for commercial late payment, if higher.

7.6 **Usage transparency.** The Provider shall give the Customer access to near-real-time usage and cost data and alerts for budget thresholds. Charges for usage beyond the Order Form commitment are at the rates in the Order Form.

7.7 **Switching charges.** Charges relating to switching, data egress and exit are governed exclusively by Clause 22. The Provider shall not impose switching charges after 12 January 2027, and before that date only reduced charges not exceeding the Provider's direct costs of the switching process, as required by the Data Act.

8. Suspension

8.1 The Provider may suspend the Services (or the affected part) only if: (a) the Customer fails to pay undisputed Fees [thirty (30)] days after a reminder notice; or (b) suspension is necessary to prevent imminent and material harm to the security or integrity of the Services or other customers, or is required by law or a competent authority.

8.2 Suspension shall be limited in scope and duration to what is necessary, with [ten (10)] days' notice (or as much notice as is practicable in an emergency), and the Provider shall restore the Services promptly once the cause is remedied. The Provider shall not delete Customer Data during suspension. Fees for suspended Services under 8.1(b) shall abate.

9. Change Control and Service Evolution

9.1 Either Party may propose changes to the Services or this Agreement by written change request. No change binds a Party until agreed in writing, except as stated in Clause 9.2.

9.2 The Provider may modify the Services (including features, interfaces and underlying technology) provided that the modification does not materially reduce the functionality, performance, availability or security of the Services or the Provider's obligations under this Agreement. Where a modification would (a) remove a feature on which the Customer materially relies, or (b) deprecate an API, runtime, or product version, the Provider shall give at least [twelve (12)] months' notice (or [thirty (30)] days for security fixes) and shall provide a migration path. If the modification materially and adversely affects the Customer, the Customer may terminate the affected Services without penalty and with a pro-rata refund of prepaid Fees.

9.3 The Provider may update the Documentation and policies, but no update may reduce the Provider's commitments under this Agreement.

10. Intellectual Property and Customer Data

10.1 **Customer Data.** As between the Parties, the Customer and its licensors own all rights in Customer Data. The Customer grants the Provider a limited, non-exclusive licence during the Term to host, copy, process and transmit Customer Data solely to provide the Services in accordance with this Agreement and the DPA. The Provider shall not use Customer Data to train or improve machine-learning models, or for advertising, profiling or any other purpose of its own.

10.2 **Provider IP.** The Provider and its licensors own all rights in the Services, Documentation, software, tools and know-how, and all improvements. Except for the rights granted in this Agreement, no rights are transferred.

10.3 **Customer applications.** On IaaS and PaaS, the Customer owns the software, applications, models and configurations it develops or deploys. Provider components embedded in them remain Provider IP, licensed to the Customer for use with the Services.

10.4 **Service Data.** The Provider may use Service Data to operate, secure, support, bill and improve the Services, provided that it is aggregated or de-identified so that it does not identify the Customer, any Authorised User or any individual, and contains no Customer Data content. To the extent Service Data contains Personal Data, the Provider is an independent controller for that data and shall comply with Applicable Data Protection Law and the privacy notice at [URL].

10.5 **Feedback.** The Provider may use feedback voluntarily given by the Customer, provided it does not include Customer Data or Confidential Information.

11. Data Protection

11.1 **DPA.** To the extent the Provider processes Personal Data in Customer Data on the Customer's behalf, the Parties are bound by the DPA, which forms part of this Agreement and satisfies Article 28(3) GDPR. The DPA prevails over any conflicting term on the processing of Personal Data.

11.2 **Roles.** The Customer is the controller (or processor on behalf of its own controller) and the Provider is its processor. The Provider acts as a controller only for the processing in Clause 10.4. Each Party shall comply with its obligations under Applicable Data Protection Law.

11.3 **Requests and notifications.** The Provider shall inform the Customer without undue delay of any request from a supervisory authority, court or data subject concerning Customer Data, unless prohibited by law, as further stated in the DPA.

11.4 **Government access.** The Provider shall implement the policies and measures described in the DPA (including legal review, challenge and data minimisation) to resist unlawful third-country governmental access to non-personal and personal Customer Data, and shall publish and keep up to date the information on jurisdictions and safeguards required by the Data Act.

12. Security and Incident Management

12.1 The Provider shall implement and maintain technical and organisational measures that meet or exceed Schedule 4, are appropriate to the risk and the Service Model, and are no less protective than recognised standards (ISO/IEC 27001 and, where stated, ISO/IEC 27017 and 27018, SOC 2 Type II, [C5 / SecNumCloud / ENS / other]).

12.2 The Provider shall notify the Customer of a Security Incident without undue delay and in any event within [24 / 48] hours after becoming aware of it, giving the information required by the DPA and Schedule 4, shall take prompt steps to contain, investigate and remediate it, and shall keep the Customer updated. Notification is not an admission of fault.

12.3 The Provider shall provide the Customer, on request and no more than annually (unless following a Security Incident), the latest independent audit reports and certificates. The Customer may conduct penetration tests of its own resources in accordance with the Provider's testing policy.

12.4 **Business continuity and disaster recovery.** The Provider shall maintain, test at least annually, and give a summary of results of, business continuity and disaster recovery plans consistent with the recovery objectives (RPO and RTO) in the SLA.

12.5 **NIS2 / sector cooperation.** The Provider shall provide information and cooperation reasonably required by the Customer to meet cybersecurity risk-management, incident-reporting and supply-chain obligations under Directive (EU) 2022/2555 and equivalent national law, including early warning of incidents within the timelines needed for the Customer's own notifications.

13. Confidentiality

13.1 Each Party (Recipient) shall keep the other's (Discloser's) Confidential Information confidential, use it only to perform or receive the Services, protect it with at least reasonable care, and disclose it only to personnel, Affiliates, advisers, auditors and approved subcontractors who need to know it and are bound by equivalent duties. **Confidential Information** means non-public information disclosed in connection with this Agreement that is marked confidential or would reasonably be understood to be, including Customer Data, security documentation and the terms of this Agreement.

13.2 Confidential Information excludes information that: (a) is or becomes public other than through breach; (b) was lawfully known to the Recipient before disclosure; (c) is independently developed without use of the Confidential Information; or (d) is lawfully received from a third party without restriction. The Recipient may disclose Confidential Information where required by law, court or regulator, after prompt notice to the Discloser (where lawful) and disclosing only what is required.

13.3 These obligations apply during the Term and for [five (5)] years afterwards, and for trade secrets and Customer Data, for as long as the information remains a trade secret or Customer Data is held. On termination each Party shall return or destroy the other's Confidential Information, except as required by law, subject to Clause 22 for Customer Data.

14. Service Levels and Support

14.1 The Provider shall meet the service levels in the SLA. Service credits and other SLA remedies are in addition to the Customer's rights to terminate under Clause 21 and to claim damages for breach, except as limited by Clause 19 and the SLA.

14.2 The Provider shall provide support in accordance with the SLA and the support tier stated in the Order Form.

15. Subcontractors

15.1 The Provider may use subcontractors to provide the Services only in accordance with this Clause and, for Personal Data, the DPA. The Provider shall list subcontractors with access to Customer Data (sub-processors) at [URL] and in Annex III to the DPA.

15.2 The Provider shall (a) conduct due diligence on each subcontractor; (b) bind each by written terms no less protective than this Agreement as relevant to the subcontracted services; and (c) remain fully liable for the acts and omissions of each subcontractor as if its own.

15.3 Where a subcontractor is material to the Services or processes Customer Data, the Provider shall give the Customer at least [thirty (30)] days' notice of any addition or replacement, and the Customer may object on reasonable grounds as provided in the DPA.

16. Audit, Assurance and Regulatory Cooperation

16.1 Audit rights regarding Personal Data are in the DPA. In addition, the Customer (and its regulators) may, on [thirty (30)] days' notice (or shorter where required by a regulator or following a Security Incident), audit the Provider's compliance with this Agreement, directly or through an independent auditor bound by confidentiality, [once per year] during normal business hours, and without access to other customers' data.

16.2 The Provider shall cooperate with supervisory authorities and with regulators of the Customer, and, if the Customer is a financial entity, comply with Schedule 7.

16.3 Where the Provider's certified independent audit reports adequately address the scope of the Customer's request, the Customer shall first use those reports; the Customer may still audit where the reports are insufficient, a regulator so requires, or a Security Incident has occurred.

17. Warranties

17.1 Each Party warrants that it has power and authority to enter this Agreement and that it will comply with the laws applicable to it in performing it.

17.2 The Provider warrants that: (a) the Services will perform materially in accordance with the Documentation and the Order Form; (b) it will provide the Services with reasonable skill and care by suitably qualified personnel; (c) it will use industry-standard measures to prevent the introduction of malicious code into the Services; (d) the Services (excluding Customer Data) and its use as permitted do not infringe third-party IP rights; and (e) the statements in its security documentation and certifications are accurate.

17.3 If the Services breach Clause 17.2(a) or (b), the Provider shall, at its cost, promptly re-perform or correct them; if it cannot do so within a reasonable time, the Customer may terminate the affected Services and receive a refund of prepaid Fees for the period after termination.

17.4 EXCEPT AS STATED IN THIS AGREEMENT AND TO THE EXTENT PERMITTED BY LAW, ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, ARE EXCLUDED. THE PROVIDER DOES NOT WARRANT UNINTERRUPTED OR ERROR-FREE SERVICE EXCEPT AS EXPRESSED IN THE SLA.

18. Indemnities

18.1 **IP indemnity.** The Provider shall defend and indemnify the Customer and its Affiliates against all third-party claims, and resulting losses, damages, costs and reasonable legal fees, alleging that the Services (excluding Customer Data and Customer-provided specifications), used as permitted, infringe or misappropriate that third party's Intellectual Property Rights. If an injunction is, or is likely to be, obtained, the Provider shall at its cost procure the right to continue use, modify the Services to be non-infringing with equivalent functionality, or, if neither is commercially reasonable, terminate the affected Services and refund prepaid Fees (and assist under Clause 22). The Provider has no liability to the extent the claim arises from the Customer's modification, combination or breach of this Agreement.

18.2 **Data protection indemnity.** The Provider shall indemnify the Customer against fines or compensation payable to data subjects, and reasonable costs of regulatory investigation and notification, to the extent caused by the Provider's breach of the DPA or Applicable Data Protection Law, subject to Clause 19.3. [Where indemnification of administrative fines is not permitted by law, this clause covers all other amounts to the extent permitted.]

18.3 **Customer indemnity.** The Customer shall defend and indemnify the Provider against third-party claims arising from (a) Customer Data or the Customer's use of the Services in breach of law or of Clause 6, or (b) the Customer's instructions where they infringe law and the Provider has notified the Customer under the DPA.

18.4 **Procedure.** The indemnified Party shall give prompt notice of the claim, allow the indemnifying Party to control the defence and settlement (provided no settlement admits fault or imposes non-monetary obligations on the indemnified Party without consent) and give reasonable assistance at the indemnifying Party's cost.

19. Limitation of Liability

19.1 Nothing in this Agreement limits or excludes liability for: (a) death or personal injury caused by negligence; (b) fraud or fraudulent misrepresentation; (c) wilful misconduct or gross negligence; (d) liability that cannot be limited by law; or (e) any person's statutory rights as a data subject under Applicable Data Protection Law, including under Article 82 GDPR, which this Agreement does not limit as against data subjects.

19.2 **General cap.** Subject to Clauses 19.1 and 19.3, each Party's total aggregate liability arising out of or in connection with this Agreement in each Contract Year is limited to [150%] of the Fees paid and payable for the Services giving rise to the claim in the [twelve (12)] months before the event. Fees owed by the Customer are not counted towards, or limited by, the cap.

19.3 **Data protection super-cap.** The Provider's total aggregate liability arising from breach of the DPA, Clause 12 or Clause 13 (including Security Incidents) and the indemnity in Clause 18.2 is limited to [the greater of EUR [amount] and [three (3)] times the Fees paid and payable in the twelve (12) months before the event], separate from and in addition to the cap in Clause 19.2.

19.4 **Uncapped liability.** The caps in 19.2 and 19.3 do not apply to the IP indemnity in Clause 18.1, to the Customer's obligation to pay Fees, to a Party's wilful or deliberate breach of Clause 13, or to the Provider's abandonment of the Services.

19.5 **Excluded losses.** Subject to 19.1 and 19.4, neither Party is liable for loss of profit, revenue, goodwill or anticipated savings (in each case indirect) or for indirect or consequential loss. The following are direct losses recoverable by the Customer: costs of restoring or recreating Customer Data; reasonable costs of notifying data subjects and regulators and of credit monitoring where required; regulatory fines to the extent lawfully recoverable; reasonable costs of procuring replacement services for up to [twelve (12)] months; and costs of workarounds.

> ***Drafting note:*** *Caps are heavily negotiated. Cloud providers typically seek a single cap tied to fees; customers seek a higher separate cap for data and security breach. Supervisory fines may not be insurable or recoverable under the law of some Member States: check national law before relying on a fine indemnity.*

20. Insurance

20.1 The Provider shall maintain throughout the Term and for [two (2)] years after, with reputable insurers, technology errors and omissions (professional indemnity) insurance and cyber liability insurance, each of not less than EUR [amount] per claim and in the aggregate, and public liability insurance of EUR [amount], and shall provide certificates on request.

21. Term and Termination

21.1 This Agreement starts on the Effective Date and continues until all Order Forms have expired or terminated. Each Order Form has the initial term stated in it (the **Initial Term**) and renews for successive terms of [twelve (12)] months (**Renewal Terms**) unless either Party gives at least [ninety (90)] days' notice of non-renewal.

21.2 Either Party may terminate this Agreement or an affected Order Form by notice if the other Party: (a) commits a material breach and fails to remedy it within [thirty (30)] days after notice; (b) becomes insolvent, enters liquidation, administration, receivership or an analogous procedure, or ceases to carry on business.

21.3 The Customer may additionally terminate an Order Form (without liability for early termination charges): (a) for Chronic Failure under the SLA; (b) for a Security Incident caused by the Provider's material breach; (c) under Clauses 9.2, 15 or 17.3; (d) if required by a regulator; (e) on a Change of Control of the Provider to a person the Customer reasonably considers to be a competitor or a security risk; or (f) for convenience on [ninety (90)] days' notice, subject to Clause 21.5, [and the Customer may terminate at any time on notice not exceeding two (2) months to initiate switching under Clause 22].

21.4 The Provider may terminate an Order Form for the Customer's undisputed non-payment for more than [sixty (60)] days after a second notice of intent to terminate, provided Clause 22 is honoured.

21.5 **Early termination charges** (if any) on termination for convenience in a fixed-term Order Form must be proportionate, stated in the Order Form, not exceed [the remaining committed Fees for the Initial Term], and must not operate as a switching charge in breach of the Data Act.

21.6 **Survival.** Clauses 1, 7 (accrued sums), 10, 11, 13, 18, 19, 22, 25, 26 and any other provision intended to survive, survive termination.

22. Exit, Data Retrieval and Switching

> ***Drafting note:*** *This clause implements the mandatory contractual content of Article 25 of the Data Act for providers of data processing services offered to EU customers. Check the final text of Chapter VI at signature, including any amendment adopted through the Digital Omnibus, and the interaction with sector rules.*

22.1 **Right to switch.** The Customer may, at any time and for any reason, switch to another provider of data processing services, or to its own on-premises infrastructure, or use several providers in parallel, by giving written notice to the Provider. The notice period for initiating switching shall not exceed [two (2) months].

22.2 **Transitional period.** The Provider shall support the Customer's switching without undue delay and shall complete the transfer during a mandatory transitional period of up to thirty (30) calendar days starting at the end of the notice period. If completion within thirty days is technically unfeasible, the Provider shall notify the Customer within fourteen (14) working days of the switching request, giving reasons and an alternative period not exceeding seven (7) months; the Customer may in any case extend the transitional period once for a period it considers more appropriate.

22.3 **Provider obligations during switching.** The Provider shall: (a) provide reasonable assistance and information; (b) act with due care to maintain business continuity and continue providing the Services under the same security, service-level and data-protection commitments; (c) provide clear information on known risks to continuity; (d) maintain a high level of security throughout; and (e) provide the exportable data and digital assets in a structured, commonly used and machine-readable format, using open interfaces and interoperability specifications, in accordance with Schedule 5.

22.4 **Scope.** The categories of data and digital assets that can be ported are exhaustively listed in Schedule 5 and include all Customer Data and exportable data (including metadata, configurations, logs under the Customer's control, and application and infrastructure-as-code definitions), and exclude assets protected by the Provider's or third parties' IP rights or trade secrets (except to the extent required for the Customer to switch).

22.5 **Data retrieval period.** After the transitional period, the Customer has a data retrieval period of at least thirty (30) calendar days (or [x] days) during which the Provider shall make Customer Data available for retrieval, on the same terms as during the Term (including security, data protection and, at Customer's option, access).

22.6 **Erasure.** After the retrieval period, the Provider shall erase all exportable data and digital assets generated directly by the Customer or relating to the Customer directly, in accordance with the DPA, and shall certify erasure in writing, including from back-ups within [ninety (90)] days.

22.7 **Switching charges.** Until 11 January 2027 the Provider may charge reduced switching charges limited to the costs it directly incurs, as set out in Schedule 1; from 12 January 2027 no switching charges shall be payable. Standard service charges for the Services consumed during the notice and transitional periods continue to apply. The Provider shall publish a description of its switching procedures, formats, and a list of the data and assets, together with a register of any charges before they are incurred.

22.8 **Early termination penalties.** [Proportionate early termination penalties in fixed-term contracts, if permitted under the final Data Act and applicable national law, shall be stated in the Order Form.]

22.9 **Exit Plan and continuity.** The Parties shall maintain the Exit Plan in Schedule 5, updated at least annually, and the Provider shall give reasonable assistance on termination or expiry for any reason, on the same terms. Where the Provider terminates for the Customer's non-payment, it shall nonetheless preserve and make available Customer Data for retrieval on payment of undisputed Fees owing for the retrieval period.

23. Force Majeure

23.1 Neither Party is liable for delay or failure (other than payment obligations) caused by events beyond its reasonable control that it could not reasonably have avoided or mitigated, including natural disaster, war, terrorism, epidemic, government action, and general failure of public utilities or networks. Events within a Party's or its subcontractors' control (including failures of its own redundancy, security or capacity arrangements, cyber-attacks that its agreed security measures should have prevented, and subcontractor failure) do not qualify. The affected Party shall notify promptly and use reasonable efforts to resume performance. If the event lasts more than [thirty (30)] days, the other Party may terminate the affected Services.

24. Compliance

24.1 Each Party shall comply with applicable anti-bribery, anti-corruption, sanctions and export-control laws. The Customer shall not use the Services in violation of such laws or for prohibited end-uses. The Provider shall not provide the Services to sanctioned persons.

24.2 The Provider shall comply with its obligations under the EU AI Act (Regulation (EU) 2024/1689) to the extent applicable to AI features of the Services, and shall tell the Customer if an AI system forming part of the Services is classified as high-risk, and give information reasonably required for the Customer's compliance.

24.3 Each Party shall comply with supply-chain due-diligence, human-rights and similar laws that apply to it. Neither Party shall do anything that would put the other in breach of such laws.

25. Governing Law and Dispute Resolution

25.1 **Governing law.** This Agreement and any non-contractual obligations arising from it are governed by the laws of [Ireland / the Netherlands / Germany / another Member State of the EU or the Customer's place of establishment], excluding its conflict-of-laws rules and the UN Convention on Contracts for the International Sale of Goods. Mandatory EU and national law (including the Data Act and the GDPR) applies regardless.

25.2 **Escalation.** A Party shall first give notice of a dispute; the Parties' service managers shall meet within [ten (10)] days; unresolved disputes are escalated to senior executives, who shall meet within a further [fourteen (14)] days.

25.3 **Forum.** [Option A: The courts of [city, Member State] have exclusive jurisdiction.] [Option B: Any dispute not resolved within [forty-five (45)] days of notice shall be finally settled by arbitration under the [ICC / DIS / LCIA / VIAC] Rules by [three (3)] arbitrators seated in [city], in English.] Either Party may seek interim or injunctive relief from any competent court at any time, including to protect Confidential Information or Customer Data.

25.4 **Continuity.** The Provider shall continue to provide the Services, and the Customer shall pay undisputed Fees, during any dispute, and the Provider shall not suspend or terminate the Services on the basis of a dispute except under Clause 8.1(b) or 21.4.

> ***Drafting note:*** *Where the Customer is a consumer or the Data Act's unfair-terms regime (Article 13) applies to data-access and use terms in B2B contracts, certain unilaterally imposed terms may be unenforceable. Confirm how the provider's standard terms interact with Article 13 and national B2B fairness rules.*

26. General

26.1 **Assignment.** Neither Party may assign or transfer this Agreement without the other's prior written consent (not to be unreasonably withheld), except to an Affiliate or successor to the business, with notice, provided the assignee assumes all obligations and, for the Provider, has equal or better financial and technical capability.

26.2 **Notices.** Notices must be in writing and delivered by hand, courier or email (with confirmation) to the addresses in the Order Form; they are effective on receipt. Security Incident notices go to the Customer's security contact named in the Order Form.

26.3 **Entire agreement.** This Agreement is the entire agreement on its subject and supersedes all prior discussions, subject to liability for fraud.

26.4 **Waiver, severance.** No delay is a waiver. An invalid or unenforceable provision is severed and replaced by a valid one that most closely achieves the original intent.

26.5 **Independent contractors; third-party rights.** The Parties are independent contractors. Affiliates named in an Order Form may enforce it through the Customer. No other person may enforce this Agreement.

26.6 **Publicity.** Neither Party shall use the other's name or marks without prior written consent.

26.7 **Counterparts and signature.** This Agreement may be signed in counterparts and electronically.

26.8 **Language.** This Agreement is made in English, which prevails over any translation.

Signed for and on behalf of [PROVIDER LEGAL NAME]	Signed for and on behalf of [CUSTOMER LEGAL NAME]
Signature: _____ Name: [NAME] Title: [TITLE] Date: [DATE]	Signature: _____ Name: [NAME] Title: [TITLE] Date: [DATE]

Schedule 1. Order Form (Template)

Item	Details
Order Form number / date	[number] / [date]
Customer entity and Affiliates	[names]
Service Model	[ ] IaaS [ ] PaaS [ ] SaaS
Services and quantities	[description, SKUs, metrics (users, vCPU, GB, transactions)]
Service Region(s)	[EU region(s) / city / data-centre cluster]; support and administrative access locations: [ ]
Service start date; Initial Term	[date]; [12 / 24 / 36] months
Fees	[amounts, currency, rate card reference, committed spend, overage rates]
Invoicing and payment	[frequency; payment terms; PO number]
Renewal	[auto-renew / manual]; notice for non-renewal: [90] days
Support tier and SLA tier	[Standard / Premium / Critical]
Sub-processors and key subcontractors	As listed at [URL] / Annex III to the DPA
Excluded data categories	[e.g. special categories of data, classified information, card data - unless agreed]
Switching charges (until 11 Jan 2027)	[direct-cost based tariff, itemised]; none from 12 Jan 2027
Early termination charge	[none / schedule]
Security and certification requirements	[Schedule 4 baseline / additions]
Contacts	Service manager: [ ]; security contact: [ ]; DPO / privacy contact: [ ]; escalation: [ ]

Schedule 2. Service Model Terms

Part A - IaaS (rented kitchen)

A.1 **Scope.** Provider supplies compute, storage, networking and related infrastructure resources and management interfaces. The Customer deploys and operates operating systems, middleware and applications.

A.2 **Provider commitments.** Physical and environmental security; host and hypervisor security and patching; tenant isolation; network backbone; resource availability per the SLA; secure deletion of storage media on release of resources; prompt notice of any vulnerability in the virtualisation layer affecting the Customer.

A.3 **Customer commitments.** Hardening and patching of guest operating systems and software; identity, key and access management for resources it controls; network security group and firewall rules; encryption-key management where Customer-managed keys are used; backup of data on volumes unless a backup service is purchased; compliance of workloads with licensing and law.

A.4 **Encryption and keys.** Data at rest is encrypted by default using [AES-256]. Where available, the Customer may use customer-managed or external keys; loss of Customer-held keys is the Customer's responsibility.

Part B - PaaS (equipped kitchen)

B.1 **Scope.** Provider supplies the platform, runtimes, databases, middleware, deployment and orchestration tools, and manages the underlying infrastructure and platform software. The Customer builds, deploys and operates its own applications and manages its data on the platform.

B.2 **Provider commitments.** Platform patching and runtime updates; platform security; availability of platform APIs per the SLA; documented deprecation and migration process (Clause 9.2); portability: Provider shall use open standards and exportable formats for application code, configurations and data wherever reasonably practicable, and shall document proprietary dependencies.

B.3 **Customer commitments.** Application code security, secure configuration, secrets management, access control, data classification, and compliance of the application with law; upgrades of its applications to supported runtime versions within the notice period.

Part C - SaaS (ready meal)

C.1 **Scope.** Provider supplies the hosted application, including infrastructure, platform, application, security, updates, backup and support.

C.2 **Provider commitments.** Application security and patching; tenant isolation and logical separation of Customer Data; backup and recovery per the SLA; role-based access control and logging features; data export in a structured, commonly used, machine-readable format at any time through the interface or API; release notes and notice of material functionality changes (Clause 9.2).

C.3 **Customer commitments.** Management of user accounts and permissions; configuration choices; accuracy and lawfulness of content; use only within licensed metrics; prompt notification of suspected compromise.

Schedule 3. Shared Responsibility Matrix

P = Provider primarily responsible; **C** = Customer primarily responsible; **S** = shared (the Provider supplies the capability, the Customer must configure and operate it).

Responsibility area	IaaS	PaaS	SaaS
Physical data centre, power, cooling, hardware	P	P	P
Network backbone and DDoS protection (provider perimeter)	P	P	P
Hypervisor / virtualisation and tenant isolation	P	P	P
Operating system patching	C	P	P
Middleware / runtime / database engine patching	C	P	P
Application code and application-level security	C	C	P
Application updates and bug fixes	C	C	P
Identity and access management: user accounts, roles, MFA enforcement	C	C	S
Provider personnel access controls to Customer Data	P	P	P
Network configuration (security groups, firewall rules)	C	S	P
Encryption at rest (platform capability)	S	P	P
Encryption key management (where customer-managed keys used)	C	C	S
Backup and disaster recovery of customer data and configurations	S	S	P
Logging, monitoring and alerting of customer-controlled resources	S	S	P
Data classification, legality and accuracy of content	C	C	C
Compliance of Customer's own use (sector rules, GDPR as controller)	C	C	C
Security incident detection and notification regarding the Services	P	P	P
Response to incidents in Customer-controlled resources	C	C	S
Data export and exit readiness	S	S	P

Schedule 4. Security Requirements

The Provider shall, at a minimum, implement and maintain the following measures (which complement Annex II of the DPA and shall be at least as protective as the measures there):

Domain	Minimum requirements
Governance and certification	Information security management system certified to ISO/IEC 27001 [and ISO/IEC 27017 / 27018]; SOC 2 Type II or equivalent annual report; [national scheme, e.g. C5, SecNumCloud, ENS]; named security officer; risk assessments at least annually
Access control	Least-privilege and need-to-know; MFA for all administrative access; privileged-access management with session logging; quarterly access reviews; immediate revocation on leaving; no standing production access to Customer Data except as needed
Encryption	Encryption in transit (TLS 1.2 or higher) and at rest (AES-256 or equivalent); strong key-management with separation of duties; support for customer-managed keys where stated in the Order Form
Network and application security	Segmentation; DDoS mitigation; WAF where applicable; secure development lifecycle; vulnerability scans at least [monthly] and independent penetration tests at least annually; critical vulnerabilities patched within [7] days (high: [30])
Logging and monitoring	Centralised, tamper-resistant logging with [12] months retention; 24x7 security monitoring; alerts for anomalous access
Tenant isolation	Logical isolation of Customer Data from other customers; no use of production Customer Data in non-production environments without equivalent controls
Backup and recovery	Encrypted backups in the Service Region; restoration tests at least annually; RPO and RTO per the SLA
Physical security	Controlled access, CCTV, visitor logging, redundant power and environmental controls, tier [III] or equivalent
Personnel	Background checks where lawful; confidentiality undertakings; annual security and data-protection training
Incident response	Documented plan; incident classification; Security Incident notification within [24 / 48] hours of awareness, including nature, categories and approximate numbers of data subjects and records, likely consequences, measures taken, and a contact; updates at least every [24] hours until resolved; post-incident report within [10] days
Business continuity	Multi-zone resilience; tested disaster recovery; supplier risk management
Secure deletion	NIST SP 800-88 or equivalent sanitisation of media; cryptographic erasure; certification of deletion on request

Schedule 5. Exit and Switching Plan

Element	Content
Triggers	Notice of termination or non-renewal; switching notice under Clause 22.1; Provider insolvency; regulatory direction
Governance	Exit managers appointed by each Party within [10] days of trigger; weekly progress meetings; written exit timetable within [10] working days
Exportable data and digital assets (exhaustive list)	(1) Customer Data in all storage layers; (2) metadata and indexes; (3) configurations, templates and infrastructure-as-code definitions; (4) user and role directories (excluding secrets); (5) logs generated for the Customer; (6) application code and container images the Customer created; (7) backups of the foregoing. [Add service-specific items.]
Formats and interfaces	Open, documented, machine-readable formats (e.g. CSV, JSON, Parquet, SQL dumps, OCI images, standard virtual-disk formats); APIs available during the transitional and retrieval periods; reference to open interoperability specifications
Methods and timelines	Self-service export tools and Provider-assisted export; network transfer or physical transfer on request; transitional period up to 30 days (extendable as per Clause 22.2); retrieval period at least 30 days
Parallel running	Customer may run the Services in parallel with a destination provider during the transitional period on pro-rata Fees
Security during exit	Same security, data-protection and service levels as during the Term; encrypted transfer; integrity verification (checksums)
Erasure and certification	Deletion from production within [30] days after the end of the retrieval period, from backups within [90] days, followed by a certificate signed by an officer
Charges	Per Clause 22.7; itemised estimate provided within [10] working days of switching notice
Knowledge transfer	Documentation and reasonable Q&A with the Customer's new provider; assistance days included: [number]

Schedule 6. Contacts, Governance and Reporting

Item	Detail
Service reviews	Quarterly operational review (availability, incidents, capacity, security); annual strategic review (roadmap, risk, certification, exit-plan test)
Reports	Monthly SLA report within [10] working days after month-end; annual assurance report; ad hoc incident reports
Escalation ladder	Level 1: Service desk; Level 2: Service delivery manager; Level 3: Head of customer operations; Level 4: Executive sponsor
Notification contacts	Security: [email/phone 24x7]; Privacy / DPO: [email]; Legal notices: [address/email]

Schedule 7. Rider for Financial Entities (DORA) - Optional

Applies where the Customer is a financial entity (or an ICT third-party provider to one) within Regulation (EU) 2022/2554. In the event of conflict, this Schedule prevails over the rest of the Agreement. It reflects the contractual minimum for ICT services supporting critical or important functions under Article 30 DORA and the Commission's regulatory technical standards.

7.1 **Description.** A complete description of functions and ICT services, subcontracting conditions, and locations (regions and countries) where services are provided and data is processed, with advance notice of changes.

7.2 **Data and continuity.** Provisions on availability, authenticity, integrity and confidentiality of data; access, recovery and return of data in an easily accessible format in case of provider insolvency, resolution, discontinuation of business or termination; service-level descriptions with precise quantitative and qualitative targets and corrective action.

7.3 **Assistance and cooperation.** The Provider shall assist at no additional cost or at a pre-determined cost on an ICT incident related to the services, cooperate with competent and resolution authorities, and participate in the Customer's security awareness programmes and in digital operational resilience training.

7.4 **Termination rights.** The Customer may terminate on: significant breach of law or contract; circumstances altering the performance of functions; evidenced weaknesses in the Provider's ICT risk management; impediments to effective supervision; or direction of the competent authority. Minimum notice periods: [x]. Transition period for migration: [x] months.

7.5 **Testing and oversight.** Unrestricted rights of access, inspection and audit by the Customer, its auditors and the competent authorities; participation in threat-led penetration tests and other resilience tests; exit strategies and mandatory transition periods.

7.6 **Subcontracting.** Where subcontractors support critical or important functions, conditions per the applicable regulatory technical standards, including flow-down of Article 30 terms, monitoring and the Customer's right to object.

> ***Drafting note:*** *DORA and its technical standards set detailed requirements; for in-scope customers the rider should be completed with specialist input and the Customer's register of information requirements.*